



File No.: EXP202403570

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On March 5, 2024, a complaint was filed with the Spanish Agency for Data Protection against the responsible parties of PERFIL ANONTUBE A.A.A. and PERFIL ANONVIDEOS B.B.B.

The reasons for the complaint are as follows:

The complainant expresses her desire for a sexually explicit video published by a user on the website anontube.com to be removed. She states that she is currently involved in a legal process related to those images which, apparently, were originally published on another site. She points out that "From the beginning, the recommendation of the police and legal bodies was not to remove the content until the preliminary hearing. However, the content has jumped to a new page and I need to remove it from there, because it contains my professional photo, my name, and my profession."

SECOND: On March 5, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed was accepted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following details:

URL ANONTUBE.COM

On March 7, 2024, evidence of the video indicated in the complaint was obtained. This video appears published, but the content can only be viewed after accessing the website with a paid premium account. A user was created and logged in, but the content could not be viewed without prior payment. The publication contains five screenshots located below the video with captures of parts of the video. On March 7, 2024, a request for the removal of the content was made through the form published at ***URL.1 accessed via the Anontube website. (DCMA -> DCMA/Contact -> Legal Department / Law Enforcement Contact Portal).

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On March 15, 2024, a query was made at <https://whois.domaintools.com/> regarding the website <https://www.anontube.com>. The following information was located:

- Registrar: NAMECHEAP INC. Namecheap, Inc.
- URL: <https://www.namecheap.com/>
- Registrar Abuse Contact Email: abuse@namecheap.com
- Registrant/Admin Email: ***EMAIL.1

On that date, an email was sent reiterating the request for the removal of the content to the aforementioned email addresses.

On March 18, 2024, it was verified that the content had been removed from the website.

URL ANONVIDEOS.COM

It was verified that when conducting a Google search for the complainant's name, a new webpage appeared: ***URL.2 which displays the same video, along with the five screenshots, uploaded on March 11, 2024.

On March 18, 2024, a query was made at <https://whois.domaintools.com/> regarding the website <https://www.anonvideos.com>. The following information was located:

- Registrar: NAMECHEAP INC. Namecheap, Inc.

- URL: <https://www.namecheap.com/>
- Registrar Abuse Contact Email: abuse@namecheap.com
- Registrant/Admin Email: ***EMAIL.2

On that date, an email was sent to those addresses requesting the removal of the content.

On March 21, 2024, the request for the removal of content was reiterated through the form published at ***URL.1.

On March 25, 2024, it was verified that the content had been removed from the webpage.

INVESTIGATION OF THE AUTHORSHIP OF THE FACTS

A query was made on the NameCheap Inc. website <https://www.namecheap.com/> (Diligence NAMECHEAP), and it was observed that its representative in the European Union for the application of the GDPR is the European Data Protection Office (EDPO).

On April 4, 2024, a request for information was sent to the EDPO requesting the identification and contact information of the holder of the domains anontube.com and anonvideos.com.

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On April 11, 2024 (email to the Citizen Attention mailbox) and April 26, 2024, a response letter from the EDPO is received requesting the name of the client to redirect the information request. The information is provided via email sent on April 23, 2024, with acknowledgment of receipt on April 24, 2024, and reiterated through a request sent by international certified mail on May 21, 2024.

On May 31, 2024, an email response from EDPO is received regarding the request, stating the following:

“...Namecheap’s privacy team has asked us to inform you that Namecheap does not host the websites (anontube.com and anonvideos.com) and, therefore, is not involved in processing any of the data contained in the sites.”

Unofficial translation:

“The privacy team at Namecheap has asked us to inform you that Namecheap does not host the websites (anontube.com and anonvideos.com) and, therefore, does not participate in the processing of any of the data contained in the sites.”

On May 21, 2024, an information request is sent via international certified mail to the company WITHHELD FOR PRIVACY EHF, registered in Whois (Whois diligence) as the company responsible for domain privacy. The request sought the following information:

- o IP address used to publish the content.
- o Identifying information associated with users “A.A.A.” (Anontube) and “B.B.B.” (Anonvideos) responsible for uploading the video.

The submissions do not show that they have been received.

On June 26, 2024, an information request is sent via email to the address abuse@namecheap.com, and a form is filled out to request information through https://abuserreports.com/?page_id=5763

On July 10, 2024, a response email is received from no-reply@abuserreports.com indicating the following:

“Our client comments as follows:

This content does not exist on our servers or network and no logging is present we are totally B.B.B. adult posting network.

Please update your automated systems to remove this incorrect flagging Abuse Department.
Anon Networks”

Unofficial translation:

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"Our client comments as follows:

This content does not exist on our servers or network and no logs are present; we are a totally anonymous adult posting network.

Please update your automated systems to remove this incorrect flagging Abuse Department. Anon Networks"

LEGAL GROUNDS

I

Competence

According to the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legitimacy of processing

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

The processing of images that identify or make a person identifiable constitutes the processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the ground...

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The usual legitimizing factor is consent, in general. And it is the person who uploads the personal data and images that can be viewed without any limitation who must demonstrate that they have that consent.

In order for that processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data

subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

III

Conditions for Consent

In relation to the conditions for consent, Article 7 of the GDPR states:

- "1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.
4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

IV

Conclusion

In order to identify the person or persons who were processing the data of the complainant included in a video, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which determines the following:

"1. Before the adoption of the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing that involves mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the admission decision or from the date of the decision to initiate when the Spanish Data Protection Agency acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law." After conducting the investigations mentioned in the Facts, the following conclusions have been reached:

The removal of the reported content has been achieved.

The person responsible for the publication could not be identified.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images contained in the video, in accordance with what has been indicated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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